

§§ 101 (a)(1), (b)(1). By contrast with Title II, which is general legislation, Title I is special legislation singling out one individual as the target.

Although the prohibition against bills of attainder has been addressed only infrequently by this Court, it is now settled beyond dispute that a bill of attainder, within the meaning of Art. I, is by no means the same as a bill of attainder at common law. The definition departed from the common-law concept very early in our history, in a most fundamental way. At common law, the bill was a death sentence imposed by legislative Act. Anything less than death was not a bill of attainder, but was, rather, "a bill of pains and penalties." This restrictive definition was recognized tangentially in *Marbury v. Madison*, 1 Cranch 137, 179 (1803),²⁹ but the Court soon thereafter rejected conclusively any notion that only a legislative death sentence or even incarceration imposed on named individuals fell within the prohibition. Mr. Chief Justice Marshall firmly settled the matter in 1810, holding that legislative punishment in the form of a deprivation of property was prohibited by the Bill of Attainder Clause:

"A bill of attainder may affect the life of an individual, or may confiscate his property, or may do both."
Fletcher v. Peck, 6 Cranch 87, 138. (Emphasis supplied.)

The same point was made 17 years later in *Ogden v. Saunders*, 12 Wheat. 213, 286, where the Court stated:

"By classing bills of attainder, *ex post facto* laws, and laws impairing the obligation of contracts together, the

²⁹ "The constitution declares that 'no bill of attainder or *ex post facto* law shall be passed.'

"If, however, such a bill should be passed and a person should be prosecuted under it; must the court condemn to death those victims whom the constitution endeavors to preserve?" *Marbury v. Madison*, 1 Cranch, at 179.